Michael Harper

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CROWN OFFICE CHAMBERS

Michael Harper

Call 2016

"He's a superstar who performs far beyond his call" and "truly a master of his trade."
(Chambers & Partners, 2026 and Legal 500, 2026)

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Michael is ranked as a leading junior by the directories in his core practice areas of professional negligence and insurance (and has been for a number of years). This is complemented by Michael's practice and experience across commercial disputes, including civil fraud, property damage, product liability and construction, with frequent overlap between these areas.

Michael draws on extensive involvement in heavy cases, assisting closely throughout the litigation and including through to 4-week and 5-week trials in recent years and another 5-week trial in previous years – successfully in each case.

Michael advises and acts at all stages of litigation and in a variety of hearings, often as sole counsel in the High Court. Alongside this, Michael prides himself on working effectively as part of a larger team.

Recent or current examples of Michael's work include:

- The Grenfell Tower Litigation: civil claims arising out of the Grenfell Tower Fire, spanning many of Michael's areas of practice. Acting for the main contractor. Led, as part of a team, by Andrew Rigney KC.
- World Challenge v Zurich [2023] EWHC 1696 (Comm) and subsequent appeal to the Court of Appeal: £10m insurance coverage dispute arising from Covid. Acted at the 4-week trial and on appeal, with the parties settling days before the 3-day appeal began. Led by Daniel Shapiro KC.
- Proceedings against a global law firm (pre-action): £50m professional negligence claim arising out of a large commercial property deal. Led by Roger Stewart KC.
- David Wood Baking v QBE & ors: £110m claim for machinery & plant and business interruption following a fire; settled weeks prior to a 3-week trial, following an expedited timetable. Led by Daniel Shapiro KC and managing a team of junior counsel.
- DIPT v Sanglier; Sanglier v Apollo [2023] EWHC 426 (TCC): 5-week trial arising from the supply of adhesive, raising commercial, product liability and professional negligence issues. Led by Carlo Taczalski.

Before joining Chambers, Michael was the Judicial Assistant to Lady Justice Gloster, worked on what became the Insurance Act 2015 at the Law Commission and tutored in Commercial Law at the University of Oxford. During practice Michael has also spent a period on secondment with a specialist insurance firm.

This background has provided direct experience of what solicitors and clients but also judges want from counsel.

This followed undergraduate and BCL degrees at the University of Oxford (the latter on a faculty scholarship) and the BPTC, during which he won multiple prizes. Michael also won the largest national mooting competition, the final of which was judged by Lord Clarke, Christopher Clarke LJ and Sir Richard Aikens.

Professional Liability

Michael is identified as a leading junior in Legal 500 and Chambers & Partners for professional liability, which forms a core part of his practice.

Michael has extensive experience of a wide variety of claims against professionals, including solicitors, brokers, accountants and other financial professionals, construction professionals, surveyors and other agents, consultants and professionals.

A notable past example was one of the Lawyer's Top 20 cases of 2019, a £300m professional negligence dispute, which fought through to a 5-week trial (and which would have been longer but for the compressed trial timetable).

Examples of Michael's work are given below.

Lawyers

- Proceedings against a global law firm (pre-action): £50m claim arising out of a large commercial property acquisition. Led by Roger Stewart KC.
- Proceedings against a (different) global law firm (pre-action): £20m claim arising out of a multi-billion private equity acquisition. Led by Daniel Shapiro KC.
- Cornell v Newtons Solicitors: £2m claim, alleging failure to advise a property developer client on title. Sole counsel.
- PBF Investments v Ewan & Co: £1m claim arising from a loan raising, amongst other issues, a defence of illegality based on a fraudulent or sham lending arrangement. Sole counsel.
- Iyegbe v CMS: acting to strike out a £5.5m claim making serious allegations, including fraud, against two solicitors and a Court clerk and obtaining a civil restraint order. Sole counsel.
- Muirgold v CMS: £14m claim arising from negotiation of long-term hotel management agreements. Led by Roger Stewart KC, but acting as sole counsel on interim applications.
- First Tower Trustees v Olswang LLP: £2.5m claim alleging wide-ranging breaches, relating to transactional work and thereafter litigation arising from the transaction. Led by Daniel Shapiro KC.
- Mayr v CMS: one of the Lawyer's Top 20 cases of 2019. Michael defended CMS in a £300m negligence claim on the principal basis that the claim arose out of the claimants' fraud. The claimants discontinued during a 5-week trial following cross-examination of their principal witnesses. The case involved expert accountancy evidence and a number of procedural skirmishes. Led by Roger Stewart KC and Daniel Shapiro KC.
- Significant experience of claims against solicitors generally, particularly in the context of conveyancing.

Insurance Brokers & Agents

- Kalra v J Bennett & Sons: £2m brokers' negligence claim, following rejection of cover for alleged non-disclosure. Sole counsel.
- Dispute between a major car manufacturer and its brokers: £1m brokers' negligence claim for failure to place cover. Sole counsel.
- Claim by a major insurer against a major provider of legal expenses insurance and funding regarding the operation of its delegated authority across thousands of ATE policies. Led by Ben Pilling KC.
- Broker's negligence claim relating to the adequacy of the policy placed.

Accountants & Financial Professionals

- Mount Anvil Group v KPMG: £6m accountants' negligence claim, arising from an alleged forfeiture of tax relief due to incorrect returns. Led by Roger Stewart KC.
- Vilintone & ors v Wincham International: claim against international asset specialists (combining legal, taxation and accountancy services), allegations as to tax consequences of acquisition of Spanish property via corporate vehicles.

Construction Professionals

- The Grenfell Tower Litigation: civil claims arising out of the Grenfell Tower Fire, including defending negligence claims against the main contractor and bringing negligence claims against a variety of other construction professionals. Led, as part of a team, by Andrew Rigney KC.
- Fatboys Catering Equipment v Burnside Hotel: claim for unpaid fees and counterclaim for alleged breaches in relation to the design and installation of a commercial hotel kitchen; protracted litigation (2019-2024), due to a number of procedural skirmishes.
- The Gym v Brighton Seafront Regeneration & ors: multi-party dispute arising from construction works.
- Advising on and drafting letters of claim against the architect and parties contracted to design and supply and to fix planters at an eight-storey commercial office building.
- Yord & ors v Design Realised: dispute as to the quality of works and materials regarding works to two properties.
- Advising and settling particulars for fire damage at a residential property caused by hot works during a construction project.
- RG Carter Holdings v Horton Construction Services: claim by the main contractor against the carpentry subcontractor for allegedly defective construction of a loft hatch (leading to personal injury and settlement by the main contractor).

Surveyors & Valuers

- Significant experience of surveying claims generally, particularly in the context of properties and yachts.
- Robinson v Aldi Stores et ors: claim against quantity surveyor in a multi-party construction dispute, relating to a roofing project.
- Brown v Underwood: claim against chartered surveyor relating to residential property.

Emerging & Non Standard Professionals

- Capital Development Investments v Shadow Consultancy Services: claims for alleged breaches of a contract for security services at a commercial property (during which a burglary occurred) and unjust enrichment; counterclaim for unpaid fees.
- Pour v X Scuderia: claim for alleged breach of contract to restore a vintage Rolls Royce.
- Malik v X Scuderia: claim for alleged breach of contract to restore a high-end supercar (a 2007 Ferrari 599 GTB).
- Vilintone & ors v Wincham International: claim against international asset specialists (combining legal, taxation and accountancy services), allegations as to tax consequences of acquisition of Spanish property via corporate vehicles.
- Bushwood v Wincham International: claim against international asset specialists, alleged failure to investigate title.

Experience prior to joining Chambers

- Hughes-Holland v BPE [2017] UKSC 21: Michael assisted with the appeal, culminating in the landmark judgment in which the Supreme Court restated SAAMCO principles.

Insurance & Reinsurance

Insurance work, both litigated and advisory, forms a core part of Michael's practice and Michael is identified as a leading junior in Legal 500.

Michael has extensive experience of a wide range of issues across coverage, policy interpretation and recovery claims. This includes a secondment with a specialist insurance firm.

Michael is particularly at ease with technical points, having contributed towards the Insurance Act 2015 at the Law Commission and with a depth of academic background in this field.

Litigated cases

Examples of Michael's litigated work include:

- World Challenge v Zurich [2023] EWHC 1696 (Comm) and subsequent appeal to the Court of Appeal: £10m insurance coverage dispute arising from Covid. Acted at the 4-week trial and on appeal, with the parties settling days before the 3-day appeal began. Led by Daniel Shapiro KC.
- David Wood Baking v QBE & ors: £100m claim for machinery & plant and business interruption following a fire; settled weeks prior to a 3-week trial, following an expedited timetable. Led by Daniel Shapiro KC and managing a team of junior counsel.
- Markerstudy Insurance Services v H: strike out of a six-figure claim by an insurers managing general agent under a motor policy; described by the Judge as an *"unusual set of proceedings"* for turning, in part, on whether the insurer would consent to substitution as claimant.
- Quality Pack v Lloyd's Syndicate 1991: £10m claim for property, business interruption and public liability cover; disputed on the basis of alleged non-disclosure.

- Mamancochet v Aegis [2018] EWHC 2643 (Comm) and subsequent appeal to the Court of Appeal: acting for 30 Lloyd's syndicates; defended a £4m claim in a highly expedited trial on a novel issue of coverage.
- Shaik v Go Skippy Insurance: motor policy claim relating to the scope of cover under the standard wording and so of wider significance to the insurer.
- Spire Healthcare v RSA [2018] EWCA Civ 317: as a pupil, Michael assisted on the appeal, concerning the proper interpretation of an aggregation clause. Assisting Michael Harvey KC and Daniel Shapiro KC.

Advisory work

Examples of Michael's advisory work include:

- £22m claim on a public liability policy, arising from hot works.
- £10m claim on a public liability policy (comprising a global master policy and local policies) arising from a fire at Alicante airport.
- £0.4m claim on professional indemnity policy for allegedly defective design and/or installation of generators.
- £1m claim on public and products liability policy, arising from flooding.
- £0.6m claim on professional negligence policy arising from allegedly defective M&E works, as part of overall design and construction works.
- £4.5m claim on property damage and business interruption policy, arising from a fire.
- Regarding breaches of warranty relating to a warehouse fire.
- Drafting tripartite settlement agreement between insured and insurer market to compromise a dispute on policy construction, following a cyber (ransomware) attack.
- Advising in relation to and drafting declinature and recovery correspondence in relating to the refusal of a jewellery claim on the basis that it was a fraudulent claim.
- Advising in relation to and drafting declinature correspondence for non-disclosure.
- Regarding potential liability under a motor policy, in circumstances of car hire and multiple insurers.

Commercial

Michael handles a range of commercial work ranging from classic disputes concerning general contractual matters, civil fraud and the supply of goods or services through to more specialist areas such as insolvency.

Michael's practice in this area benefits from a depth of academic and practical experience prior to joining Chambers. This includes a year as Judicial Assistant to Lady Justice Gloster and tutoring in Commercial Law at the University of Oxford, following specialised study during the BCL (Commercial Remedies, Restitution, Corporate Insolvency, Conflicts).

Examples of Michael's work are given below.

Civil Fraud

- The Grenfell Tower Litigation: civil claims arising out of the Grenfell Tower Fire, including claims in deceit and unlawful means conspiracy against the cladding manufacturers. Led, as part of a team, by Andrew Rigney KC.
- PBF Investments v Ewan & Co: £1m professional negligence claim raising, amongst other issues, an illegality (ex turpi) defence based on a fraudulent or sham lending arrangement. Sole counsel.
- Iyegbe v CMS: acting to strike out a £5.5m professional negligence claim making serious allegations, including fraud, against two solicitors and a Court clerk and obtaining a civil restraint order. Sole counsel.
- Gluyas v Leviathan: £0.8m claim based on an elaborate fraudulent scheme involving (purported) corporate vehicles in the Marshall Islands, fabricated company minutes and fictitious settlement agreements. Redolent of the elaborate schemes perpetrated by Mr Rizwan Hussain (see, for example, [2021] EWHC 171 (Ch)).
- Malik v X Scuderia: claim for alleged breach of contract to restore a high-end supercar (a Ferrari 599 GTB), including a illegality defence arising from fraudulent misrepresentations that the car was an even more valuable 599 GTO: see related proceedings, [2021] EWHC 2744 (Ch).
- Advising insurers and drafting declinature and recovery correspondence in relating to the refusal of a jewellery claim on the basis that it was a fraudulent claim.
- Mayr v CMS: one of the Lawyer's Top 20 cases of 2019. Michael defended CMS in a £300m solicitors' negligence claim on the principal basis that the claim arose out of the claimants' fraud. The Claimants discontinued during a 7-week trial following cross-examination of their principal witnesses. Led by Roger Stewart KC and Daniel Shapiro KC.

Sale of Goods and Services

- DIPT v Sanglier; Sanglier v Apollo [2023] EWHC 426 (TCC): 5-week trial arising from the supply of adhesive. A principal issue concerned limitations of liability; ancillary issues included the scope of arbitration clauses.
- Fatboys Catering Equipment v Burnside Hotel: claim for unpaid fees and counterclaim for alleged deficient performance, raising classic issues of contractual interpretation, allocation of responsibility and limitation; protracted litigation (2019-2024), due to a number of procedural skirmishes.
- Capital Development Investments v Shadow Consultancy Services: claims for alleged breaches of a contract for security services at a commercial property (during which a burglary occurred) and unjust enrichment; counterclaim for unpaid fees.
- £5m claim involving two of the largest global banks and a prime brokerage firm, involving issues of contractual interpretation and foreign law.
- Claim by a care home against the maintenance contractor for alleged deficient performance, following flood damage caused by surface and foul water pumping stations.

Director's Duties and Fiduciary Duties

- Claim against fiduciaries for unexplained transactions and misappropriated monies.
- Mayr v CMS: one of the Lawyer's Top 20 cases of 2019. Solicitors' negligence claim including allegations of breach of fiduciary duty that solicitors 'turned on' former clients.

Company and insolvency

- Gluyas v Leviathan: advised and acted on an application to set aside a statutory demand for £0.8m, itself arising from an elaborate fraudulent scheme involving (purported) corporate vehicles in the Marshall Islands, fabricated company minutes and fictitious settlement agreements.
- EUI v Yousaf: advised and acted on an application to set aside an Individual Voluntary Arrangement (IVA) on the basis of non-disclosure and to reinstate (and make final) charging orders against the debtor's property.

Asset Recovery, Interim Applications and Enforcement

- Malik v X Scuderia: urgent application to stay a writ of control – followed by an application to set aside the underlying default judgment and contested proceedings, leading ultimately to striking out the claim.
- EUI v Yousaf: advised and acted on an application to set aside an Individual Voluntary Arrangement (IVA) on the basis of non-disclosure and to reinstate (and make final) charging orders against the debtor's property.
- Routine enforcement proceedings, including applications to vary and applications surrounding charging orders.

Experience prior to joining Chambers

- During 2016-17, Michael was the Judicial Assistant to Lady Justice Gloster, then Vice-President of the Court of Appeal. Michael's work typically involved appeals arising from large commercial or common law disputes.
- Hughes-Holland v BPE [2017] UKSC 21: Michael assisted with the appeal, culminating in the landmark judgment in which the Supreme Court restated SAAMCO principles.
- Bonhams v Lawson & Ors [2015] EWHC 3257 (Comm): £11m multi-party commercial dispute, in which Michael assisted in the favourable determination of a preliminary issue and subsequent settlement on the eve of a six-week trial.
- Michael has previously tutored in Commercial Law at the University of Oxford.

Property Damage

Michael frequently acts in relation to property damage matters, which very frequently dovetail with his expertise in other areas. Michael has a particular interest in relation to quantum issues and always seeks to pursue the effective commercial solution.

Examples of Michael's work are given below.

- The Grenfell Tower Litigation: civil claims arising out of the Grenfell Tower Fire, including a very substantial claim by RBKC for fire damage to the tower. Acting for the main contractor. Led, as part

of a team, by Andrew Rigney KC.
- The Gym v Brighton Seafront Regeneration & ors: multi-party dispute relating to flood damage to a commercial gym, following construction works.
- Leigh & ors v Fluidmaster: £0.5m flood damage claim following supply of an allegedly defective plumbing valve.
- Techspace Property Group v UK Power Networks: £0.4m claim for damage allegedly caused by a power surge from an electrical sub-station.
- Advising and settling particulars for fire damage at a residential property caused by hot works during a construction project.
- Acting in a number of cases of damage allegedly caused by cavity wall insulation, including through to trial.
- Claim for flood damage caused by surface and foul water pumping stations, against maintenance contractor.
- Significant experience of subsidence claims.
- Hiscox v Precious Marble and TPN Electrical [2018] EWHC 3585 (TCC): as a pupil, Michael assisted with a 6-day trial concerning property damage arising out of an escape of water followed by a fire. Assisting Daniel Shapiro KC.
- Prezzo v High Point Estates [2018] EWHC 1851 (TCC): as a pupil, Michael assisted with Part 8 proceedings concerning the principle in *Berni Inns*. Assisting Daniel Shapiro KC.

Product Liability

Michael has experience of a range of product liability matters, spanning contractual, tortious and Consumer Protection Act 1987 claims, in a wide range of factual and expert contexts.

Examples of Michael's work are given below.

- The Grenfell Tower Litigation: civil claims arising out of the Grenfell Tower Fire, including in substantial part claims against manufacturers of cladding, insulation and other building materials. Acting for the main contractor. Led, as part of a team, by Andrew Rigney KC.
- DIPT v Sanglier; Sanglier v Apollo [2023] EWHC 426 (TCC): 5-week trial arising from the supply of adhesive. Led by Carlo Taczalski.
- Leigh & ors v Fluidmaster: £0.5m claim for supply of an allegedly defective plumbing valve, causing flood damage.
- Advising and settling a Defence in relation to the settlement of a multi-party claim arising from an alleged hidden defect in work equipment.

Construction & Engineering

Michael has experience in a range of construction matters.

Examples of Michael's work are given below.

- The Grenfell Tower Litigation: civil claims arising out of the Grenfell Tower Fire, including defending

negligence claims against the main contractor and bringing negligence claims against a variety of other construction professionals. Led, as part of a team, by Andrew Rigney KC.
- Fatboys Catering Equipment v Burnside Hotel: claim for unpaid fees and counterclaim for alleged breaches in relation to the design and installation of a commercial hotel kitchen; protracted litigation (2019-2024), due to a number of procedural skirmishes.
- The Gym v Brighton Seafront Regeneration & ors: multi-party dispute arising from construction works.
- Advising on and drafting letters of claim against the architect and parties contracted to design and supply and to fix planters at an eight-storey commercial office building.
- Applying to stay proceedings pursuant to an adjudication clause.
- Yord & ors v Design Realised: dispute as to the quality of works and materials regarding works to two properties.
- RG Carter Holdings v Horton Construction Services: claim by the main contractor against the carpentry subcontractor for allegedly defective construction of a loft hatch (leading to personal injury and settlement by the main contractor).
- Challoner v PDR Construction: nuisance claim relating to building works.
- Robinson v Aldi Stores et ors: acting for the quantity surveyor in a multi-party construction dispute, relating to a roofing project.
- Defending a multi-party claim arising from defective design and construction, involving issues of apportionment as between the project manager, builders, the steelwork fabricator, successive designers and the architect.
- Pursuing a subrogated claim relating to the design and supply of defective pipework.

Rankings

Qualifications

- BPTC
- BCL, University of Oxford
- BA Hons, University of Oxford
- Lord Denning Scholarship, Lincoln's Inn
- Graduate Fund Scholarship, Oxford Law Faculty

Memberships

- COMBAR
- PNBA

Recommendations

"Michael is technically excellent. He's a superstar who performs far beyond his call."..." very easy to work with. A go-to for particularly complex issues."..." Michael is super bright but also knows how to apply it. He's very user-friendly and available. He manages to carry a lot in his head and produces excellent written work."
Chambers & Partners, 2026

"Michael is truly a master of his trade. He is extremely thorough in his work and will go the extra mile to secure the result for the client. His advice is meticulous, and his advocacy is superb."..."Michael is an extremely bright, careful and effective barrister. He leaves no stone unturned, and steadily builds an overwhelming case on behalf of his client."
Legal 500, 2026

“Michael is a future star with exceptional ability, dedication and commitment to the cause.” “Michael is a go-to counsel for a range of professional negligence claims. He brings a reassuring calm and insight to all matters.”
Chambers & Partners, 2025

“Michael has a real eye for detail and immerses himself in the case. A seriously talented junior, excellent in both his drafting and ability to engage with clients.” “Michael is a tenacious barrister. He is incredibly diligent and leaves no stone unturned. He makes even the most difficult issues digestible for clients.”
Legal 500, 2025

"Technically brilliant and very able in complex matters.”
Legal 500, 2024

“Michael is enormously talented and enthusiastic in equal measure. He consumes the facts voraciously and applies the law surgically.”
Legal 500, 2023

“Michael is enormously talented and enthusiastic in equal measure. He consumes the facts voraciously and applies the law surgically.”
Legal 500, 2022